



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and
Hazardous
Materials Safety
Administration**

MAR 4 2005

DOT-E 13860

EXPIRATION DATE: February 28, 2007

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: United States Enrichment Corporation (USEC)
Paducah, KY
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the one-time transportation in commerce of up to 600 model 48G and 50 480M cylinders containing natural uranium hexafluoride with minimal technetium-99 contamination between their plants in Paducah, KY and Piketon, OH. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.420(a)(3) as it pertains to a cylinder's ability to withstand the test specified in 49 CFR § 173.465(c) without loss or dispersal of the uranium hexafluoride and the cylinder's ability to withstand the test specified in 10 CFR § 71.73(c)(4) without rupture of the containment system.
5. BASIS: This exemption is based on the application of USEC dated August 4, 2004 submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):**MAR 4 2005**

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Radioactive material, uranium hexafluoride <i>non-fissile or fissile excepted</i>	7	UN 2978	N/A

7. SAFETY CONTROL MEASURES:a. PACKAGING -

(1) Cylinders transported under this exemption must be designed, fabricated, inspected, tested and marked in accordance with American National Standard N14.1 or American Society of Mechanical Engineers code in effect at the time the cylinder was manufactured.

(2) Cylinders must be inspected prior to shipment. Cylinders found to have dents or gouging beyond ANSI N14.1 standards; excessive corrosion; any crack or bulge; broken or separated stiffening rings; defective lifting lugs; broken, bent or distorted valve; broken bent, or distorted cylinder valve stem; cylinder valve port threads showing excessive wear, damage or corrosion; cylinder valves with less than 1 or greater than 7 cylinder valve threads exposed may not be transported.

b. OPERATIONAL CONTROLS - USEC must transport the cylinders in accordance with the provisions of its August 4, 2004 application.

c. COMMUNICATION - The package must be plainly and durably marked "DOT-E 13860" in accordance with § 172.301(c).

8. SPECIAL PROVISIONS: A current copy of this exemption must be maintained at each facility where the package is offered for transportation.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this exemption must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

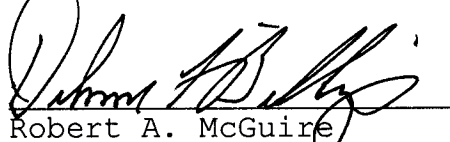
Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this exemption are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this exemption must notify the Associate Administrator for Hazardous Materials

Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this exemption.

Issued in Washington, D.C.


Robert A. McGuire

for Associate Administrator for
Hazardous Materials Safety

MAR 4 2005

DATE

Address all inquiries to: Associate Administrator for
Hazardous Materials Safety, Pipeline and Hazardous Materials
Safety Administration, Department of Transportation,
Washington, D.C. 20590. Attention: DHM-31.

Copies of this exemption may be obtained by accessing the
Hazardous Materials Safety Homepage at
<http://hazmat.dot.gov/exemptions> Photo reproductions and
legible reductions of this exemption are permitted. Any
alteration of this exemption is prohibited.

PO: RB/AM